

Court No. - 29

Case :- WRIT - C No. - 15921 of 2019

Petitioner :- Sanjeev Kumar Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dinesh Pathak

Counsel for Respondent :- C.S.C.,Amit Krishna,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

Heard learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for the respondents no.2, 4 and 5 and Sri D. S. Chauhan, learned counsel for the respondent no.3.

The electricity connection of the petitioner has been disconnected on non payment of electricity dues.

The argument of the petitioner is that the demand of electricity dues is incorrect and excessive and that he has made a complaint against the aforesaid demand to the Executive Engineer vide letter sent on 6.4.2019 by the registered post.

We are not aware if the said letter and complaint has been received by the Executive Engineer concerned.

In the circumstances, we are of the opinion that the grievance of the petitioner regarding the dispute of the electricity bill and that of re-connection can be considered by the Executive Engineer in accordance with the provisions of Clause 6.5 read with Clause 4.39 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid facts and circumstances, we dispose of the writ petition with liberty to the petitioner to make a comprehensive complaint in this regard before the Executive Engineer concerned within a period of two weeks from today. In the event any such application is made, the Executive Engineer shall consider it in accordance with law most expeditiously preferably within a period of one month from the date of submission of the complaint.

The writ petition is disposed of.

Order Date :- 9.5.2019

Pramod Tripathi